

2026 SCC OnLine All 9193

In the High Court of Allahabad⁺
(BEFORE ARINDAM SINHA AND SATYA VEER SINGH, JJ.)

Devanshu Bose ... Petitioner(s);

Versus

Electricity Ombudsman Lucknow and 4 Other ...
Respondent(s).

Writ - C No. - 15943 of 2026

Decided on April 28, 2026

Advocates who appeared in this case:

Counsel for Petitioner(s) : Devanshu Bose

Counsel for Respondent(s) : Ajay Singh, Baleshwar Chaturvedi,
C.S.C.

The Judgment of the Court was delivered by

ARINDAM SINHA, J. and SATYA VEER SINGH, J.:— Petitioner appears in person. He submits, he is resident in a housing colony. It is a gated compound. There is huge difference between electricity alleged to be supplied and the aggregate consumption measured by prepaid meters installed in the houses. This difference is being sought to be realized from persons such him. It is not payable as the electricity is not consumed by the residents or for any of their purposes. It amounts to theft. Hence, prayer in the writ petition for direction upon Respondent 4 (the supply company/licencee).

2. Mr Baleshwar Chaturvedi, learned advocate appears on behalf of Respondent 3 (the distribution company). Mr Gaurav Tripathi, learned advocate appears on behalf of Respondent 4 (the supply company). Mr Chaturvedi and Mr Tripathi want to file their respective powers. They must file in the department as the case is in E-filing mode. Mr Tripathi hands up copy of the writ petition, to be treated as reconstructed record for convenience of this Court. Mr Ankur Tandon, learned advocate Standing Counsel appears on behalf of Respondent 5 (State).

3. On query petitioner draws attention to page 50 being statement of accounts from 1-8-2025 to 1-2-2026 given by Respondent 4 to his mother, the consumer. He draws attention to entry by date 19-6-2023 carrying demand of Rs 6000.25 on arrears TPL. He submits, this entry is an example of demand made for consumption allegedly on common services but is actually for recovery of theft of electricity.

4. Mr Tripathi submits, the provision application to the facts is Clause 4.9 Part A, sub-clause (j) in U.P. Electricity Supply Code, 2005.

On perusal of the clause we find, the developer/residents welfare association (RWA) is mandated to apply for connection in respect of common facilities, in accordance with the provisions. Respondent 4 is to disclose the application and thereupon will be heard on how it can demand and recover charges for consumption on common facilities from individual residents such as petitioner. The disclosure be by affidavit, to be accepted on adjourned date upon advance copy served.

5. List on 14-5-2026 as fresh marked at 02.00 p.m. along with Writ-C No. 15954 of 2026.

† Principal Bench at Allahabad

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